

Tentative Rulings for June 10, 2026 Department M301

**To request oral argument, you must notify
Judicial Secretary Kari Gates at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 538 5472**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2503837	JOHNSON VS HEMET SNF HEALTHCARE LLC	MOTION TO BE RELIEVED AS COUNSEL FOR ROSA JOHNSON

Tentative Ruling: Motion is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVME2504902	ANWAR VS SCUDDER	EX PARTE HEARING RE: OF SHARI R. SCUDDER AND SHELLEY E. MANGRAM TO ENFORCE PRELIMINARY INJUNCTION

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2506564	MEDICAL EXTRUSION TECHNOLOGIES, INC VS AAA PAYROLL PLUS, INC	MOTION TO QUASH SERVICE OF SUMMONS AND CONTINGENT RELIEF FROM DEFAULT OR DEFAULT JUDGMENT

Tentative Ruling: Motion to Quash is granted.

Request for Judicial Notice - Defendant asks the Court to take judicial notice of the following exhibits:

Exhibit "A" - Underlying Class Action Complaint, Arrayga v. Medical Extrusion Technologies, Inc. Riverside County Superior Court, Case No. CVRI 2203190, filed August 1, 2022.

Exhibit "B" - Underlying First Amended Class Action Complaint, Arrayga v. Medical Extrusion Technologies, Inc. Riverside County Superior Court, Case No. CVRI 2203190, filed May 19, 2023.

Exhibit "C" - Complaint in instant action, Medical Extrusion Technologies, Inc. v. AAA Payroll Plus, Inc., Riverside County Superior Court, Case No. CVME2506564, filed June 5, 2025.

Exhibit "E" - Fictitious Business Name Statement, Fictitious Business Name: AAA Payroll Plus [sans "Inc."], Registrant Abeyta Family Enterprises Inc., filed in Office of the County Clerk, Riverside County, filed July 8, 2021.

Exhibit "F" – Statement of Information for AAA Payroll Plus Inc., filed with California Secretary of State, filed June 29, 2021. Exhibit "I" – Proof of Service, Date of purported service December 3, 2025, filed with Court December 4, 2025.

Exhibit "I" – Proof of Service, Date of purported service December 3, 2025, filed with Court December 4, 2025.

The Court grants judicial notice of Exhibits A, B, C and I under Ev. Code § 452(d) and Cal. Rules of Court, rule 3.1113(l). The Court grants judicial notice of Exhibits E and F under Ev. Code § 452(h) and Cal. Rules of Court, rule 3.1113(l).

Evidentiary objections - Plaintiff MET objects to portions of the moving declarations of (1) Jon Dieringer (defense counsel) and (2) Donna Willoughby-Brown (the sole owner and principal for AAA PAYROLL PLUS, INC., a California corporation.)

As a threshold matter, the evidentiary objections are buried in the Opposition, page 6, lines 4-15.) However, under Cal. Rules of Court, rule 3.1354, which provides:

All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections on specific evidence may be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement.

Each written objection must be numbered consecutively and must:

- (1) Identify the name of the document in which the specific material objected to is located;
- (2) State the exhibit, title, page, and line number of the material objected to;
- (3) Quote or set forth the objectionable statement or material; and
- (4) State the grounds for each objection to that statement or material.

Not only has Plaintiff MET not provided a separate document, and only references paragraph numbers, not the language objected to. It also states grounds (i.e., hearsay) but does not provide any authority from the Evidence Code. The Court has decided to consider the objections on their merit. However, the objections are overruled.

Merits of Motion

No default or default judgment entered. Ecourt does not reflect that a default/default judgment has been entered in this matter, although a default packet was submitted on April 20, 2026 and rejected on April 28, 2026.

Service on a Corporation - Under Corporations Code §§ 1502 and 1701, every corporation must designate an agent for service of process. This is a person or entity authorized to accept legal documents on the corporation's behalf. The agent's name and address are filed with the California Secretary of State and can be found in the Bizfile Online business search. If the designated agent is available, service must be made to them. If not, service may be made to: The president, CEO, or other head of the corporation A vice president, secretary, assistant secretary, treasurer, assistant treasurer, controller, CFO, or general manager Any person authorized by the corporation to receive service.

Rules for Serving a California Corporation

In California, service of process is the legal act of notifying a corporation that it is being sued. The rules are set out in the California Corporations Code and the California Code of Civil Procedure.

Designated Agent for Service of Process

Under California Corporations Code § 1502 and § 1701, every corporation must designate an agent for service of process. This is a person or entity authorized to accept legal documents on the corporation's behalf. The agent's name and address are filed with the California Secretary of State and can be found in the Bizfile Online business search [California Secretary of State](#).

Authorized Recipients

If the designated agent is available, service must be made to them. If not, service may be made to: The president, CEO, or other head of the corporation, A vice president, secretary, assistant secretary, treasurer, assistant treasurer, controller, CFO, or general manager. Any person authorized by the corporation to receive service.

Methods of Service

California law provides several methods, as outlined in CCP § 416.10 and related statutes: Personal service (hand delivery) to the designated agent or authorized officer. Substituted service if personal service is not possible after reasonable diligence: By mail to the agent's address (CCP § 415.30). By hand delivery to the Secretary of State's office in Sacramento, with a court order and \$50 fee [California Secretary of State](#).

Proof of Service

Here, service was made by Jesse Batjuk, a registered process server/independent contractor. The proof of service states that the party served was AAA Payroll Plus, Inc., a California Corporation. The person indicated as served was Donna Jo Willoughby-Brown/Agent For Service. The proof of service indicates that substitute service was made on Wednesday December 3, 2025, at 1:41 p.m. and Batjuk declares that he left the documents listed in [item 2] with or in the presence of: Kelsey Abeyta/Payroll. A Declaration of Mailing is attached. The notice to the Person Served (on the summons) was completed on behalf of AAA Payroll Plus, Inc., a California Corporation [CCP § 416.10 (corporation).]

Again, Defendant contends that:

- Service was not made on Defendant's designated agent for service of process, Donna Willoughby-Brown, as reflected in the Statement of Information on file with the California Secretary of State (Exhibit "F") ;
- Service was not made on Defendant's officer, director, owner, or any party authorized to accept service on behalf of Defendant;
- Service was not effected at Defendant's business address or address for the agent for service of process (Exhibits "F" and "I") ; and
- The purported service of process was improperly made on a separate entity operating a distinct business with a similarly sounding name, which was not and is not authorized to accept service on behalf of Defendant under CCP § 416.10.

Here, as set forth in the declarations supporting this motion and Exhibits, Plaintiff's proof of service (Exhibit "I") reflects service on the buyer of a Defendant's sold business assets

and goodwill operating under a similar name, rather than on Defendant itself or its registered agent for service of process or an officer of Defendant corporation.

Plaintiff MET argues that Defendant AAA Payroll Plus, Inc. was served by delivery to Kelcie Abeyta at her office at Abeyta Family Enterprises, Inc., dba AAA Payroll Plus (sans "Inc.") ("AFE, Inc."). However, that service was not valid. MET speculates that Kelcie Abeyta is the owner, officer and director of Defendant. She is not. Kelcie Abeyta is the owner, officer and director of AFE, Inc. MET also claims that Kelcie Abeyta accepted service when a process server entered and called out her fictitious business name in truncated form, "Payroll Plus ?!?", sans Inc. As noted by Defendant, the delivery to the wrong person does not create valid service.

Also, as s shown in the Business Sale Agreement executed on August 1, 2021 (Exhibit "D"), Donna Willoughby-Brown, as owner of Defendant, sold it to Kelcie K Abeyta. (Declaration of Donna Willoughby-Brown in support of Reply. ["Brown Decl."], ¶ 6, 2:2-5, 4:23-25.) Ms. Abeyta purchased all aspects of Defendant except for the corporate entity, which was retained by Ms. Willoughby-Brown. (Brown Decl., ¶¶ 2 & 3, 2:14-15, 3:8-9.) The purchase agreement, however imperfect, was to memorialize relations between Ms. Willoughby-Brown and her corporation, on one hand, and Ms. Abeyta and her corporation, on the other hand, to transfer the business assets, goodwill and the good name of "AAA Payroll Plus", to operate under a fictitious business name. (Brown Decl., ¶ 3, 3:9-12, Exhibits D and E.)

While in the process of purchasing the business assets and good name, on May 14, 2021, Ms. Kelcie Abeyta filed Articles of Incorporation with the California Secretary of State ("SOS") creating the business entity "ABEYTA FAMILY ENTERPRISES INC". (See Articles of Incorporation attached hereto as Exhibit "K"). On June 8, 2021, AFE, Inc. secured the fictitious business name "AAA PAYROLL PLUS" by recording with the Office of the County Clerk. (Exhibit "E".) The fictitious business name excluded "Inc." because Ms. Willoughby-Brown maintained ownership of the corporation. (Brown Decl., ¶¶s 2 & 3, 2:14-15, 2:26- 3:1.)

The August 1, 2021, purchase agreement states that Ms. Abeyta purchased the "leasehold interest owned by Seller for premises on which the business is located," or 43418 Business Park Drive, 102, Temecula, CA 92590. (Brown Decl., ¶¶ 3 & 6, 3:3-8, 5:3-5.)(See Exhibit "D".) AFE, INC.'s Articles of Incorporation, the fictitious business name filing, and its Statement of Information filing all state 43418 Business Park Drive, Temecula, CA 92590 as its address. (See Exhibit "K".) AFE, INC., dba AAA Payroll Plus, and not Defendant, was located at 43418 Business Park Drive, 102, Temecula, CA 92590 on the date the process was dropped off.

Similarly, papers were recorded with the Secretary of State to change the address of Defendant and its Agent for Service of Process. (Exhibit "F".)

Here, the "Proof of Service Summons" filed by Plaintiff MET indicated that Plaintiff MET served its Summons and complaint on Ms. Abeyta at her business address, not at Defendant's address. (Brown Decl., ¶ 4, 4:7-10.) (Exhibits "F" and "I".) After the sale of the business, Defendant did not employ Ms. Abeyta and did not authorize her to accept service of process. (Brown Decl., ¶ 2, 2:15-18.)

Accordingly, Plaintiff MET served the wrong business at the wrong location, and on the wrong person. Service was improper.

Ms. Abeyta was not authorized to accept service. Here, in its Opposition, Plaintiff MET inaccurately contends that Ms. Abeyta was authorized to accept service on behalf of AAA Payroll Plus, Inc. In order to reach its conclusion, MET's Opposition speculates that "Ms. Abeyta is likely an officer and/or director" of AAA Payroll Plus, Inc. (Opp. 2:21.) (Emphasis added.) As noted by Defendant, thereafter, to its credit, Plaintiff MET acknowledged that "Plaintiff lacks direct knowledge" of such fact. Plaintiff MET's comment in its opposition is not a fact.

Here, Defendant did not employ Ms. Kelcie after the business sale and it did not authorize Ms. Abeyta to accept service process. (Brown Decl., ¶ 2, 2:15-18.) Ms. Willoughby-Brown was not informed by Ms. Abeyta that she had received a Summons and Complaint. (Brown Decl., ¶ 4, 3:27-4:5.) It was only after Defendant received the Request for Entry of Default and Default Judgment that Ms. Willoughby-Brown asked Ms. Abeyta, and thereafter was informed that Ms. Abeyta remembered that she received documents and placed them in a folder for Ms. Willoughby-Brown, which Ms. Willoughby-Brown had never seen until then. (Brown Decl., ¶ 4, 3:25-4:1.)

Plaintiff's service of the summons and complaint does not comply with Corporations Code § 1702. As noted by Defendant, in its opposition, Plaintiff MET argues that Defendant's business location was behind a locked gate which prevented service of summons and complaint despite diligent efforts. met thereafter acknowledges that it served such documents to the distinct business entity, AFE, Inc., or AAA Payroll Plus. Corporations Code § 1702 provides

"If an agent for the purpose of service of process ... cannot with reasonable diligence be found at the address designated for personally delivering the process, ... and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand ..., the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service."

Here, Plaintiff MET did not seek the readily available alternative to properly serve Defendant through the Secretary of State. Instead, Plaintiff MET engaged in the fiction of serving the buyer of Defendant's business assets and goodwill – a distinct business entity not authorized by statute or agreement to accept service. Due process is not satisfied by service in the fashion proposed by MET.

4.

CASE #	CASE NAME	HEARING NAME
CVME2600150	ARMANI VS GREYSTONE REAL ESTATE PARTNERS LLC	DEMURRER

Tentative Ruling: Unopposed Demurrer sustained with 20 days leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVSW2303476	LEBLANC VS TAYLOR MORRISON HOME CORP.	DEMURRER

Tentative Ruling: Unopposed Demurrer to Plaintiff's John Doe 1 and Jane Roe 2 sustained with 20 days leave to amend.